

From: [Tim](#)
To: [Secretary](#)
Subject: docket no. 22-24 definition of refusal to deal or negotiate
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I have been shipping containers for 25 years, 20 of which as a BCO. It is safe to say that the past 2.5 years has been difficult for everybody, steamship lines included.

Prior to COVID, ocean rates were too low for import and export, while the rates ballooned to levels that I find to be extremely excessive, the action by the lines falls way short of criminal. As the rates have considerably backed off the highs, I hope this becomes a great reset where the lines rates are at levels that remain "higher" and stable". it is impossible to properly price export deal with large swings in ocean freight rates.

With all of that said, I believe but without hard evidence, that the lines declined export bookings of mine in the past couple of years.

I applaud the FMC for their proactive actions but I am afraid that there is not a way to prove that export bookings are being denied without internal communications. The one piece of evidence that does prove this is happening is the amount of empty containers that are being "exported" that could have been laden with exports.

I am happy to speak or meet with the FMC for a question and answer session that might narrow the focus as I could be missing the mark on what you are asking for.

All the best and always available



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